



**HammondCare – Anglican Community Services'
Support at Home business**

MN-85038

Phase 1 Determination

Acquisition may be put into effect

28 August 2026

1. Determination and statement of reasons

Notified acquisition	HammondCare proposes to acquire Anglican Community Services' (ACS) Support at Home (SAH) business (the Acquisition). As part of the Acquisition, HammondCare would also acquire interests held by ACS in two Care Finder Agreements, which form part of a broader Commonwealth-funded program to support people to navigate the aged care system. Post-Acquisition, HammondCare would also deliver: - Commonwealth Home Support Program (CHSP) services to ACS clients on behalf of ACS until the transition of the CHSP program to SAH pursuant to broader legislative reform in the aged care sector; and - SAH services to ACS clients who reside in retirement villages operated by ACS for 24 months from completion.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, HammondCare, is an Australian Charities and Not-for-profits Commission (ACNC) registered Australian charity that operates across New South Wales, Victoria, Queensland, South Australia, and the Australian Capital Territory. HammondCare and its connected entity, HammondCare Health and Hospitals Ltd, supply services relating to aged care, dementia care, palliative and supportive care, respite, hospital care and allied health services, delivered both in the home and in residential or hospital settings. HammondCare supplies both SAH and CHSP services. The target is the SAH business of ACS (the Target). ACS is an ACNC registered Australian charity that operates across New South Wales, Victoria, Queensland and South Australia. ACS supplies a range of charitable and pastoral services, including SAH and CHSP services.
Overlap between the Parties	HammondCare and the Target (together, the Parties) overlap in the supply of SAH and CHSP services in New South Wales.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into

	effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • post-Acquisition, HammondCare would face competition from several alternative suppliers of SAH and CHSP services in New South Wales; • the market share aggregation in the supply of SAH and CHSP services in New South Wales resulting from the Acquisition is estimated to be low.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**